

Marker Details

Name: NLRB v. Jones and Laughlin Supreme Court Ruling [Steel and Great Depression]

Region: Pittsburgh Region

County Location: Beaver

Marker Location: Franklin Ave. and Route 51, Aliquippa

Dedication Date: April 08, 2000

Marker Text

In a landmark ruling on April 12, 1937, the U.S. Supreme Court upheld the constitutionality of the National Labor Relations Board v. Jones and Laughlin Steel Corp. The company had fired unionized workers at its Aliquippa plant here, but the court ordered their reinstatement and established workers' rights to organize and bargain collectively.



[View Map](#)

Behind the Marker

"Union men were shadowed, beaten, and discharged . . . Meetings were spied on and members of the audience were warned or fired. But the union continued to grow. Then a funny thing happened. Rumors began to circulate that union men in Aliquippa were disappearing overnight - the way they do in Germany and Russia." So reported Robert Brooks, a young economics



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In the summer of 1933,
U. S. Secretary of Labor



professor from New England, who was studying labor conflict in western Pennsylvania. When the rumors came to his attention, Governor

Frances Perkins toured Pennsylvania...
Credit: © Corbis

[Gifford Pinchot](#) sent a member of the state's Labor Department, Clinton Golden, to investigate. It was 1934, and the steel companies were once again fighting union organizers with no holds barred.

In Aliquippa, home to its largest mill, the Jones and Laughlin steel company cast a long shadow. At first, no one in the town would talk, but when Golden disguised himself as a bum and hung out at street corners, he learned the story of George Isosky. A former mill worker crippled in an accident, Isosky had been doing some union work. This was not to the liking of Jones and Laughlin. So the town worthies had "railroaded him off to the state lunatic asylum at Torrence," and, when his wife refused to sign the papers to commit him, a special lunacy committee had done the job. The governor intervened, set Isosky free from the asylum, and dispatched a state police force to open up the town.

Hard-boiled antiunion companies like Jones and Laughlin were accustomed to having their way. "There was no such thing as unions discussed there at the time," recalled one steelworker. "Because if they would have discussed about unions then, you wouldn't have been there. The company had absolute control over the town." For decades, the state of Pennsylvania had dutifully dispatched its militias or the Coal and Iron Police whenever and wherever the steel or coal companies wanted. For decades, the federal government either had done nothing to counter the steel companies or had sent in National Guard units to back up the state militias. No longer. Pennsylvania's progressive Governor Pinchot had no intention of doing the steel companies' bidding. And in Washington, President Franklin Delano Roosevelt and Congress were enacting sweeping reforms that provided unprecedented protections for America's working men and women.



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On May 12, 1937, more than 25,000 workers went out on strike at the Jones and...

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When FDR took office in 1933, the country's economy was in shambles. Legislation passed that year set up a system of industrial "codes" designed to straighten out the economy, and these codes, however weak, required that companies recognize workers' rights to organize into unions. In 1935, Congress acted even more boldly, passing the National Labor Relations Act. (The landmark federal law setting up Social Security also passed in that year.) Soon hailed as the Magna Carta of organized labor, the Wagner Act, as it was known, guaranteed workers the right to strike, boycott, and picket, and it required, in no uncertain terms, that employers bargain in good faith with union representatives. It also created a National Labor Relations Board (NLRB) to make sure that employers complied with the new law. After some hesitation, U.S. Steel formally recognized the [Steel Workers Organizing Committee](#). But Jones and Laughlin dismissed a NLRB ruling against its flagrantly



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Led by pro-business Chief Justice Charles Evans Hughes, the United States Supreme...

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antiunion practices, and appealed the case all the way to the U.S. Supreme Court.

On April 27, 1937, the Supreme Court affirmed workers' rights to organize into a union "to deal on an equality with their employer" and branded the company's union busting as a "proper subject for condemnation by competent legislative authority"  [such as Congress](#). On May 12, 1937, SWOC called a strike for recognition at the J and L plant. The situation was very tense as pickets overturned a "mail truck" trying to enter the plant with food and drink for the management. Violence was averted

when Pennsylvania Governor George Earle appeared at the main gate and ordered the company to disarm. The company then ceded and agreed to allow an election. On May 20, 1937, Aliquippa steelworkers voted overwhelmingly for SWOC as "exclusive bargaining agent." It marked the first NLRB election in the steel industry. J and L was forced to rehire employees it had fired, with back pay, and to recognize SWOC. Membership cards flooded in, creating the membership base of the United Steelworkers of America. More broadly, the court's ruling in *NLRB v. Jones and Laughlin* indicated that the federal government would fully back the labor movement and that FDR's New Deal reforms represented the mainstream of American politics.



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In the first test of the
Wagner Labor Relations
Act, National Labor
Relation's...

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Beyond the Marker

James Green, "Steel Workers Organize in Aliquippa, Pennsylvania, 1933-1937," *Labor's Heritage* (5, (Summer 1993)): 7-18.

Robert R.R. Brooks, *As Steel Goes: Unionism in a Basic Industry* (New Haven: Yale University Press, 1940).

David Paccioli, "Forged in Steel," <http://www.rps.psu.edu/jan99/steel.html>.

Labor Legacy, University of Pittsburgh,, "Transcript of Supreme Court findings in *NLRB v. Jones and Laughlin*", http://www.library.pitt.edu/labor_legacy/JonesLaughlinCase.htm.